

Digital Evidence

Week 8 – Digital Evidence Case Flow

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ITMS X83 – Spring 2026

Slides contain original content from Davis, S. and
E-discovery: An Introduction to Digital Evidence



Last Week - Review

- Kahoot Review – 20 questions
 - 30 seconds for multiple choice
 - 20 seconds for true and false

Overview

1. Preserving Digital Evidence
2. Processing Digital Evidence
3. Identifying and Reviewing Relevant Data
4. The Production Phase
5. Arbitration and Mediation

Objectives

- Describe the procedures for preserving digital evidence
- Explain how to use Web-based repositories to process relevant data
- Use software tools to identify and review relevant data

Note

- Last week we talked about experts and used Everlaw as the defendant/producing party
- This week we are going to continue to review concepts around the defendant/producing party
 - Most concepts are similar to what the receiving party will also use—especially searches

Part I

Preserving Digital Evidence

Preserving Digital Evidence

- The EDRM preservation stage is critical
 - There is a risk that ESI can be altered inadvertently during collection
- The goal of the preservation stage is to isolate and protect potentially relevant data to make sure it's legally defensible
- For civil cases, Rule 26(f) recommends both parties “address any issues related to disclosure or discovery of electronically stored information”
 - Preservation and production methods should be included in this discussion

Identification and Collection

- In the EDRM, the identification stage is used to determine potential sources of relevant information
- FRCP Rule 26(f) mandates a “meet and confer”
 - This meeting allows both parties to agree on what constitutes relevant data and what format should be used for data
 - Failing to meet and confer can result in court rulings that affect the case

Rule 26f Conference In-Class Example

- Our **fictitious** case involves:
 - Plaintiff: John Smith
 - Defendant: Amazon.com
- Facts: Hackers breached Amazon's systems through a web application vulnerability (patch had been available a year prior) and infected visitors to the site with ransomware
 - One visitor was John Smith who lost all of his research on a new compression algorithm that was looking to be purchased by a competitor for 1.2mil
 - John Smith sued Amazon for 1.2mil in damages

Group 1/Amazon/Defendant

1. Aside from John Smith, who are other third parties that may have relevant evidence?
2. What questions do you want John Smith and potentially other third parties to answer regarding the facts of the case?
3. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by John Smith?
4. What types of ESI would you include in preservation letters to ensure relevant evidence isn't deleted by each of the third parties?

Group 2/John Smith/Plaintiff

1. Aside from Amazon, who are other third parties that may have relevant evidence?
2. What questions do you want Amazon and potentially other third parties to answer regarding the facts of the case?
3. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by Amazon?
4. What types of ESI would you include in preservation letters to ensure relevant evidence isn't deleted by each of the third parties?

Rule 26f In-Class Example

- You have ~20 minutes to discuss all of this
- Each group will present to the class their answers to these four questions
- The opposing group should take notes during the presentation and will need to either agree to preserve all of the proposed data sources or object and determine a reason why a particular source might not contain relevant evidence

Rule 26f In-Class Example

- Divide the live class into two groups
 - Students watching the video later can pick one of the groups
- Each group should nominate a grad student group leader and a documentation person
- Everyone should figure out answers to the questions during the group time and at least 4 group members should present the answers to the class
 - The documentation person should write the answers on the doc

Rule 26f In-Class Example

- Go to the Week 8 Module in Canvas for our course
- Download the file for your group
 - Group 1:
 - Rule 26f Group 1 Amazon.docx
 - Group 2:
 - Rule 26f Group 2 John Smith.docx

Suggested Answers – Group 1/Amazon/Defendant

1. Aside from John Smith, who are other third parties that may have relevant evidence?

- Competitor looking to buy algorithm
- Competitor's email and cloud storage providers
- John Smith's email and cloud storage providers
- Any data recovery services John Smith may have used to try to recover the algorithm
- Any technology professionals that assisted John Smith during the incident/infection

Suggested Answers – Group 1/Amazon/Defendant

2. What questions do you want answered regarding the facts of the case relating to John Smith and potentially any third parties?

- What type of device the algorithm was stored on
- Proof that the device was infected
- Proof that John Smith actually even designed an algorithm
- Proof that John Smith was in talks with the competitor about the algorithm (communications, contracts, documents, etc.)
- Proof that John Smith was in negotiations for up to 1.2 mil
- Proof of any data recovery attempts
- Proof from ISP of his connection to Amazon

Suggested Answers – Group 1/Amazon/Defendant

3. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by John Smith?

- Digital communications (email, voicemail, IMs)
- Network and security logs
- Documents (Word, PDF, Spreadsheets, PPT, etc.)
- Local Email
- Backups and archive files
- Calendar data
- Mobile devices

Suggested Answers – Group 1/Amazon/Defendant

4. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by each of the third parties?

- Competitor, Data Recovery Firm, Tech Pros for Incident
 - ❖ Digital Communications
 - ❖ Documents (Word, PDF, Spreadsheets, PPT, etc.)
 - ❖ Forensic images

- Email/Cloud Storage Provider
 - ❖ Digital Communications
 - ❖ Backups

Suggested Answers – Group 2/John Smith/Plaintiff

1. Aside from Amazon, who are other third parties that may have relevant evidence?

- Storage providers
- Outsourced security pros
- Incident response company
- Amazon's email provider
- Amazon's cloud storage provider (if not themselves)
- Parties who have performed pen testing, vulnerability scans, soc2 reports, auditing on Amazon prior
- Web application company that provided patch
- Wayback machine

Suggested Answers – Group 2/John Smith/Plaintiff

2. What questions do you want answered regarding the facts of the case relating to Amazon and potentially any third parties?

- What was Amazon's security posture and policies like
- Why didn't Amazon patch the vulnerability
- How many people were affected
- What is the size and operational status of Amazon's security staff
- Had Amazon been told about vulnerability prior by internal staff or a third party and not do anything about it
- Did internal or external security systems alert on the vulnerability
- Did Amazon employees discuss the vulnerability or breach
- How quickly was the vulnerability fixed

Suggested Answers – Group 2/John Smith/Plaintiff

3. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by Amazon?

- Digital communications (email, voicemail, IMs)
- Network and security logs
- Security/Help Desk tickets
- Documents (Word, PDF, Spreadsheets, PPT, etc.)
- Local Email
- Backups and archive files
- Calendar data
- Mobile devices

Suggested Answers – Group 2/John Smith/Plaintiff

4. What types of ESI would you include in a preservation letter to ensure relevant evidence isn't deleted by each of the third parties?

- Security Pros and Incident response company
 - ❖ Digital Communications
 - ❖ Documents (Word, PDF, Spreadsheets, PPT, etc.)
 - ❖ Forensic images
- Email/Cloud Storage Provider
 - ❖ Digital Communications
 - ❖ Backups
- Web app company
 - ❖ Digital Communications (emails about vulnerability)
 - ❖ Web site posts (about vulnerability)
- Wayback machine
 - ❖ Web site posts (about vulnerability)

Identification and Collection

- Judge Shira A. Scheindlin, well known for her decisions on e-discovery in the *Zubulake* case, recommends:
 - Including which nine fields of metadata in any ESI production?
 - Identifier, filename, custodian, source device, source path, production path, modified date, modified time, and time zone offset value
 - Including which fields in all e-mail production?
 - Sender and recipient, CC and BCC recipients, date and time sent, subject, date and time received, and attachments

Identification and Collection

- Courts prefer that requesting parties receive e-discovery data in the same form and with the same content as what the producing parties used
 - Example: if the responding party stores documents in a Microsoft Word format but produces the documents in Adobe PDF format, original metadata is lost
- The collection stage of EDRM consists of acquiring ESI data that was specified as potentially relevant in the identification stage

Identification and Collection

- The EDRM recommends that litigation teams:
 - Develop a collection strategy
 - Prepare a collection plan
 - Select the collection method
 - Carry out the collection plan
- Important factor not mentioned in the EDRM:
 - Ensuring that technically qualified people are used to manage ESI data collection

Identification and Collection

- Once both sides agree on what to preserve, then each side needs to consult with their teams to determine which data sources to put litigation holds on and preserve

Part II

Processing Digital Evidence

Processing Digital Evidence

- The processing stage takes place after all relevant information is collected
 - Takes place to reduce the volume of electronic data
- In some cases, data must be converted into a format that's more suitable for review and analysis

Requests for Data

- Requests for data can be received via a subpoena or an e-discovery request
- The Sedona Principles and FRCP Rule 26(f) recommend that both parties discuss issues of preserving and producing electronic data
- Using a targeted scope for data collection requires configuring search criteria in the software tools used for collecting data

Eliminating Duplicate Files

- Duplicate files increase the data set's size and the cost of the production process

Using Native or Converted Files

- Data sets are typically processed in one of two ways, depending on the agreed upon file format:
 - To continue to the review stage with the files in native format
 - To convert the files into TIF with OCR or into searchable PDF files

Native File Review

- Most industry experts push for native file review
 - No need to spend time and money converting files that are already searchable and have intact metadata
- The review process requires using the file's native application to open it
 - However, opening a file might trigger hidden macros
 - Can change metadata and the file's contents

Native File Review

- Processing software that automates functions such as Bates stamping
- Bates stamping: a logical numbering system that uniquely identifies each page in documents
 - Bates prefix denotes the document's source
 - Example: Acct-00001 means the first page of the first document from the Accounting department

Native File Review

- Many documents related to the discovery request might contain privileged or protected material
 - The unprotected portion must be produced
- **Redaction** can be used to omit the protected data

Web-Based Repositories

- Web-based repositories are a good option for review
 - Most can handle native file formats
- A hosting service manages converting data to the repository's platform
 - Allows law firms to focus on a case's legal issues
 - Leaves the problems of technology, infrastructure, and database administration to a third-party vendor

Native File Conversions with In-House Repositories

- Attorneys are usually most comfortable with searchable PDF files
 - They're required to file documents with the court in PDF format
- Files converted to TIF with OCR have an advantage over PDFs
 - Most litigation database and trial presentation tools were developed to be used with TIF and OCR files

Native File Conversions with In-House Repositories

- After processed discovery is loaded in the review platform:
 - Additional database fields are coded with information similar to what was included on index cards in the past
- Coding: process of examining documents to identify names, dates, and relevant terms or phrases
 - Resulting information is entered in database fields
 - Can be done manually or with software

Native File Conversions with In-House Repositories

- **Objective coding:** used with bibliographic data
 - Example - sender, recipient, data, etc.
- **Subjective coding:** used to evaluate relevancy, legal issues, etc.

Native File Conversions with In-House Repositories

- **Issue coding:** determines whether the document's narrative content relates to case issues
 - Example: there might be a database field called Issue
 - This field's content could include items such as "breach of contract" or "harassment" for a lawsuit involving wrongful termination of an employee

Then There is Paper

- Converting paper documents to TIF with OCR involves the same processing tools discussed earlier
 - As well as a scanner interface
- Search methods and field coding must be adjusted to accommodate problems with OCR quality
 - See Figure on following slide for poor quality example

OCR Example

PORTLAND GENERAL ELECTRIC COMPANY Unanimous Written Consent of Directors

The undersigned, constituting all of the directors of PORTLAND GENERAL ELECTRIC COMPANY, an Oregon corporation (the "Company"), in accordance with the provisions of Section 60.341 of the Oregon Revised Statutes, do hereby consent to the adoption of the following resolutions and, upon execution of this consent or a counterpart hereof by each of the directors listed below, do hereby adopt such resolutions:

D:\D15D33E7F21_60664.dat - Notepad

File Edit Format View Help

DFIRSTBATESpPLASTBATESpDFIRSTBATCHpPLASTBATCHpDFIRSTATTACHpPLASTATTACHpDBO
X_DESCRIPTIONpDATEpCONDITIONpDOC_TYPEpOTHER_NOpTITLEpAUTHORpADDRESSEp
pCOPYEEpTRADER_NAMEpFERC_COMMENTpOCR_TEXTp
pWAS003-1365pWAS003-1366pWAS003-1346pWAS003-1384pCONFIDENTIAL 1
pF 3 MARCH 15 DATA REQUESTp18/06/1998pCONTRACT@FACSIMILEpDEC000198223-
EC000198224pPORTLAND GENERAL ELECTRIC COMPANY UNANIMOUS WRITTEN CONSENT OF
DIRECTORSpSKILLING-JK@LAY-KL@HIRKO-JM@HARRISON-KL@DERRICK-JVp
MAR 28 2002 10:33 FR ENRON BROADBAND SRQS 7136466143 TO
91202996e102 P.20/92*****
PORTLAND GENERAL ELECTRIC COMPANY
Unanimous Written Consent of Directors
The -
undersigned, constituting all of the directors of PORTLAND GENERAL
ELECTRIC COMPANY, an Oregon corporation (the "Company"), in accordance
with the provisions of Section 60.341 of the Oregon Revised
Statutes; do hereby consent to the adoption of the following
resolutions and, upon execution of this consent or a counterpart
hereof by each of the directors listed below, do hereby adopt such
resolutions:
ACCOUNT(S);
TRANSACTIONS;
RESOLVED, that any one of (i) the
President, (ii) the Vice President Chief Financial
Officer and Treasurer or (iii) the Senior Vice President, Power Supply, of
the Company, acting together with (i) the Senior
Vice President, General Counsel and Secretary or (H) the
individual so designated in writing by the Senior Vice President,
General Counsel and Secretary, are authorized and empowered,
for and in the name and on behalf of the Company,

Part III

Identifying and Reviewing Relevant Data

Identifying and Reviewing Relevant Data

- Legal review begins after the staff have finished preserving, identifying, collecting, and preliminary processing data
- Choice of review platform has been made
 - Web based or desktop
- The legal team reviews preliminary data set to find:
 - Relevant material and any material protected by attorney-client privilege

Identifying and Reviewing Relevant Data

- Each case should begin with a planning session
 - Including a review manual containing all materials needed by the review team
- Reviewing the complaint as well as responses to early information requests:
 - The legal team can put keywords, phrases, and players in context
 - Can also question the relevance of similar words not initially included in searches
- Lead attorney should explain the preliminary case strategies

Identifying and Reviewing Relevant Data

- Next, training in the review platform's search features should occur
 - Training should cover principles of fielded and full-text searching
 - As well as the following searches
 - Keyword, Boolean, fuzzy, stemming, proximity, and wildcard
- All document reviewers should be given examples of potential search problems and solutions
 - Such as poor-quality OCR

Advanced Search Lab

- Logon to Everlaw
 - <https://app.everlaw.com>
- Use your same credentials as last week

Advanced Search Lab

The screenshot displays the Everlaw interface for the Illinois Institute of Technology. The interface is divided into several sections:

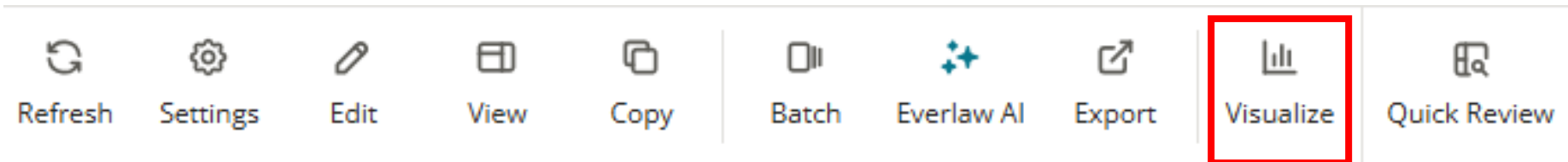
- Header:** Everlaw logo and Illinois Institute of Technology dropdown menu.
- Left Sidebar:**
 - Filter cards:** A search bar for filtering cards.
 - Navigation:** Links to All, Favorites, Mine, Shared with me, and Document overview.
 - Folders:** A section with a filter bar and a plus icon to add new folders.
- Main Content Area:**
 - All:** A section with a dashed box prompting to "Create a new Assignment Group".
 - Assignments:** A section with a "Learn more" link.
 - Searches:** A section with three search results, each showing a document icon, a count, and a star icon.
 - SEARCH 1:** Coded «Responsive» at any time. 9 documents.
 - SEARCH 2:** Contents «"enron(ethics)"~20» and Custodian exactly «Enron». 5 documents.
 - SEARCH 3:** Contents «Fraud» and Custodian exactly «Enron». 17 documents.
 - Binders:** A section with one binder result, showing a document icon, a count, and a star icon.
 - BINDER 1:** PROD001. 8 documents.

Advanced Search Lab

- We will again look at a set of emails from the Enron dataset—taken from a PST file
- Scroll to the right and select “Enron – Kenneth Lay Emails” under “Document Sets” (may be near the bottom)

Advanced Search Lab

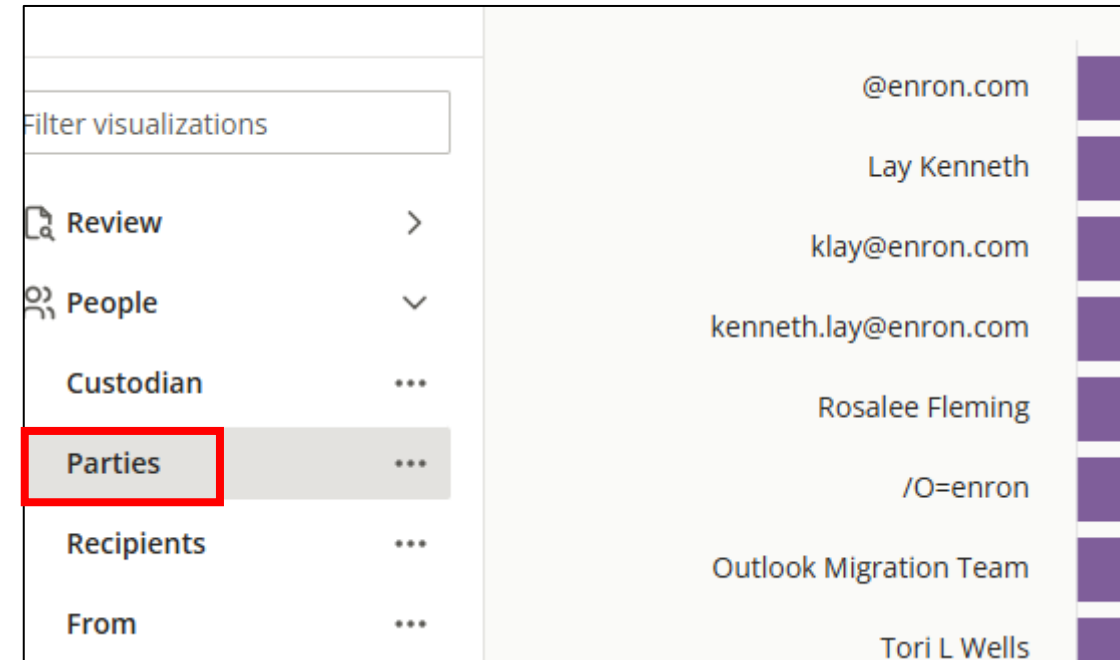
- Select “Visualize”



- Select the different tabs on the left “People,” “Document,” etc. to see the various filter options

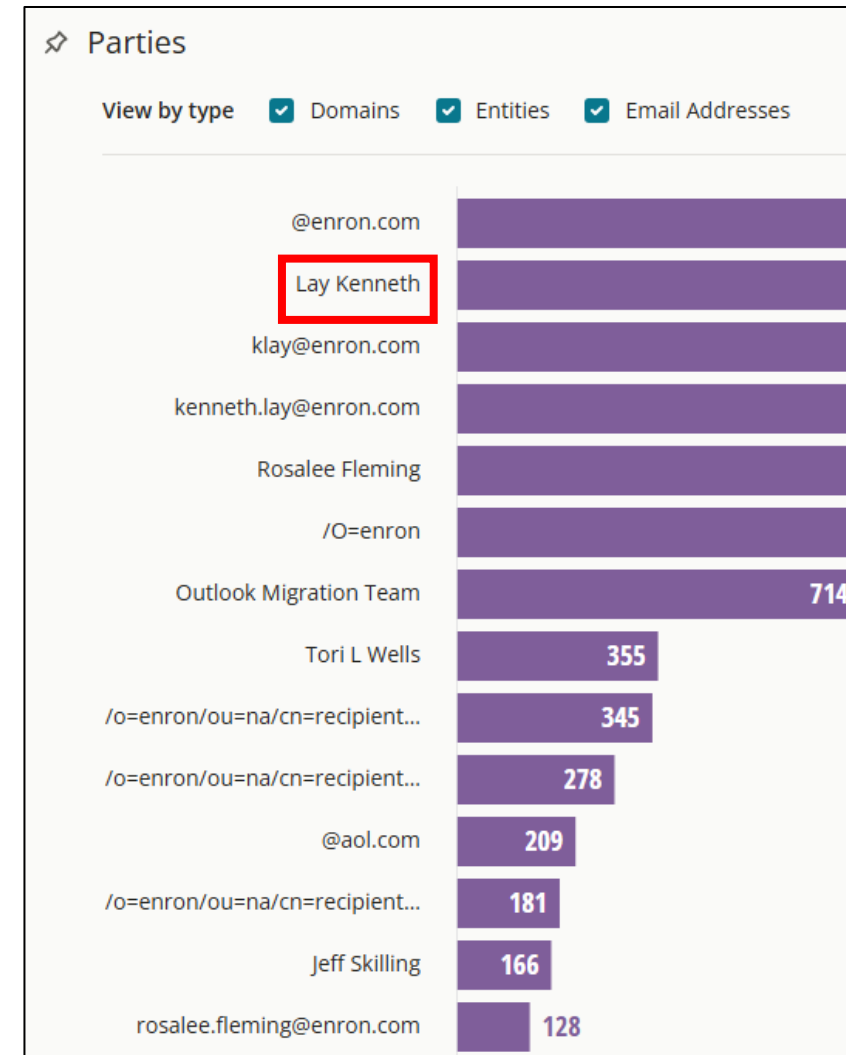
Advanced Search Lab

- Select “People” and then “Parties”
- Hover over the different purple lines to see involved emails and names



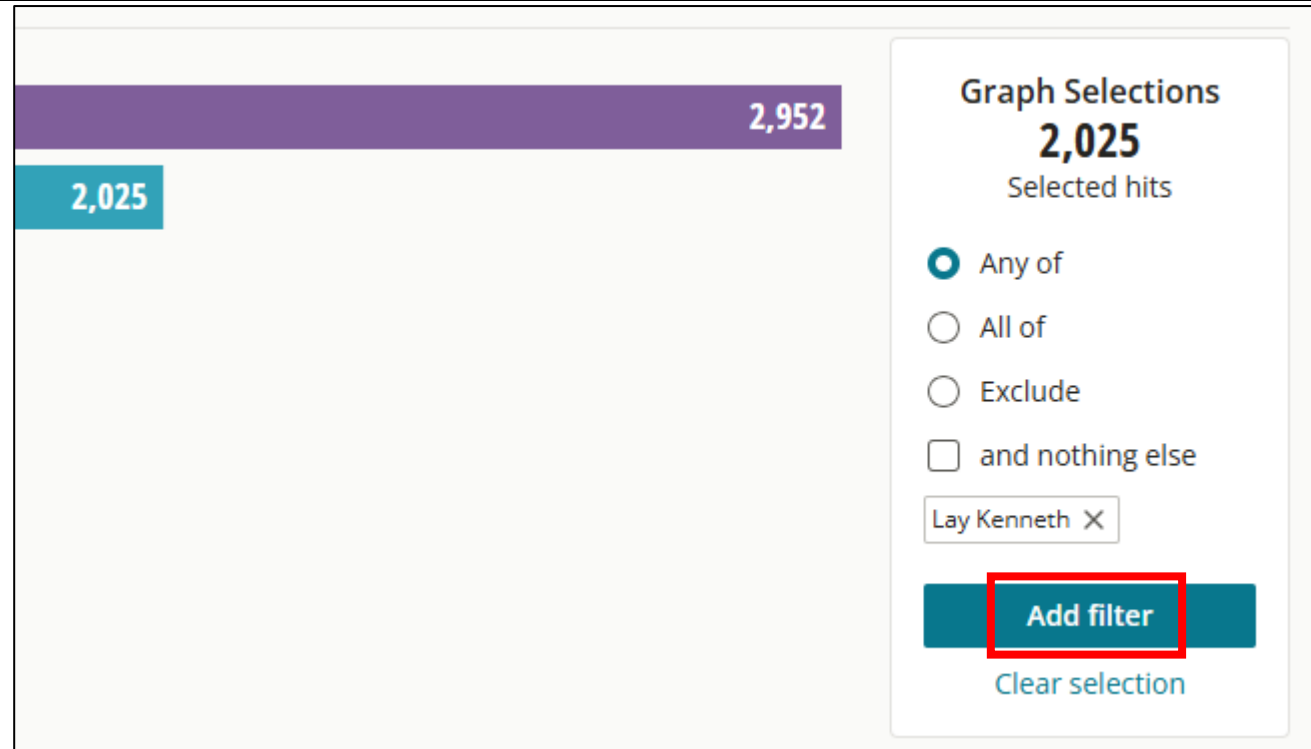
Advanced Search Lab

- Hover over “Lay Kenneth” to see the possible filter options
- Select “Lay Kenneth”

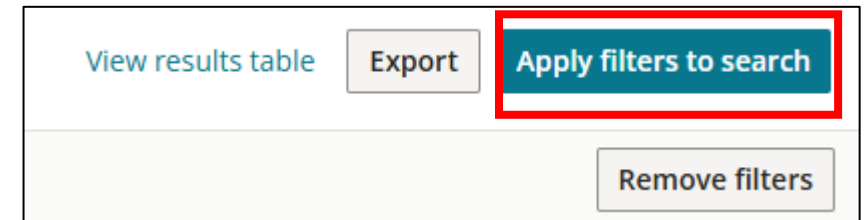


Advanced Search Lab

- Select “Add filter”



- Select “Apply filters to search” at the top right



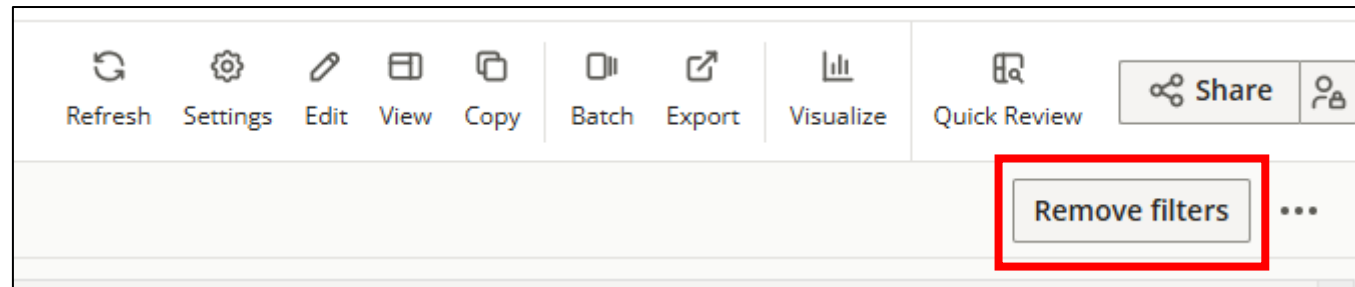
Advanced Search Lab

- You could now review the documents matching this filter

Everlaw Illinois Institute of Technology ▾									
Dataset Enron - Kenneth Lay Emails ☆ 📁 Last edited 3:15 PM CST ▾									
3,200 selected / 3,200 filtered of 9,237 total									
Parties: Lay Kenneth ✕									
✓	Type ▾	Row # 🔍	Bates/Contro...1 🔍	Document Set ▾	Num P... ▾	Rati... ▾	Coded		
✓	✉ Email	1	#8878.1	Native: Enron - Kenneth Lay Emails	1	Unrated			
✓	✉ Email	2	#8879.1	Native: Enron - Kenneth Lay Emails	1	Unrated			
✓	✉ Email	3	#8880.1	Native: Enron - Kenneth Lay Emails	1	Unrated			
✓	✉ Email	4	#8881.1	Native: Enron - Kenneth Lay Emails	1	Unrated			
✓	✉ Email	5	#8882.1	Native: Enron - Kenneth Lay Emails	2	Unrated			
✓	✉ Email	6	#8883.1	Native: Enron - Kenneth Lay Emails	2	Unrated			

Advanced Search Lab

- Let's get rid of the current filter
- Select "Remove filters" on the top right



Advanced Search Lab

- Now let's look at how to search from a document set.
- Select the “Project Search” icon 
- Select “Uploaded”
 - Scroll to select “Enron – Kenneth Lay Emails”
 - Any State
 - Any Flags
- **Don't** hit “Search”

Advanced Search Lab - Wildcards

- The “Contents” term allows you to perform advanced searches
- A wildcard search can look for a single letter (?) or multiple letters (*)

Advanced Search Lab - Wildcards

- How many hits did you get for each search?
 - Type in the first term and hit “Enter”
 - **Don’t** hit “Search”
 - Delete the first term, type the second term and hit “Enter”

This screenshot shows the first step of a search query. On the left, a blue vertical bar contains the word "And". To its right are two search terms in separate boxes: "Contents remain?" and "Uploaded Native: Enron - Kenneth Lay Emails". Each box has a small 'X' icon in the top right corner. Below the search terms, there are three buttons: "Open data visualizer", "Search", and a "Hide all" button with a downward arrow icon. To the right of the "Hide all" button, it says "↓ 1%" and "Search settings".

This screenshot shows the second step of the search query. The interface is identical to the first screenshot, but the first search term has been changed to "Contents remain*". The "Uploaded Native: Enron - Kenneth Lay Emails" term remains the same. The buttons and layout are consistent with the first screenshot.

Advanced Search Lab - Wildcards

- Now, hit “Search” after this one:

The screenshot shows a search interface with two criteria entered in a list:

- Contents** remain*
- Uploaded** Native: Enron - Kenneth Lay Emails

Below the criteria list, there are buttons for "Open data visualizer" and "Search". To the right of the criteria list, there are links for "Hide all", "↓ 1%", and "Search settings".

- Select 8898.1 to open the Review window
- Select the “Hit Highlights” tab and use the arrow buttons next to “remain*” to find the hits

Advanced Search Lab - Wildcards

The screenshot displays the Advanced Search Lab interface. On the left, a document preview shows a memo from Billy Lemmons Jr. to the Associate/Analyst Program. The memo text includes: "Tracey", "</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Tirvin>", "Lemmons Jr., Billy", "</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Wlemmon>", "Associate/Analyst Program", "2001-08-23 13:24:25 -0500", "_1.dat", "To: Associate/Analyst Program Worldwide", "From: Ken Lay Department: Office of the Chairman", "Subject: Associate/Analyst Program Date: August 22, 2001", "As most of you know, Jeff Skilling created the Associate/Analyst Program in 1990. This Program is one of his most successful and important contributions to Enron, and will continue as a cornerstone of the Company. It remains our single most important source of new talent.", and "The purpose of this memo is to reassure you that the direction, philosophy, and importance of the Program remains unchanged. As we have said many times, most". The word "remains" is highlighted in pink in the document preview. On the right, the search results panel shows "Everything Else" with a "Show unpinned (0)" link. The "Search Hits" section displays a single hit: "< remain*" with a pink highlight. The hit is shown as "2 of 2". The "Metadata" section shows "All Custodians" as "Enron". The "Annotations" section is empty. The "Notes" section has a "T" icon and an "Add note" button. At the bottom, there are "Edit layout" and "Save/Load..." buttons. Navigation arrows are visible on the left and right sides of the document preview.

Tracey
</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Tirvin>
Lemmons Jr., Billy
</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Wlemmon>
Associate/Analyst Program
2001-08-23 13:24:25 -0500
_1.dat

To: Associate/Analyst Program Worldwide
From: Ken Lay Department: Office of the Chairman
Subject: Associate/Analyst Program Date: August 22, 2001

As most of you know, Jeff Skilling created the Associate/Analyst Program in 1990. This Program is one of his most successful and important contributions to Enron, and will continue as a cornerstone of the Company. It remains our single most important source of new talent.

The purpose of this memo is to reassure you that the direction, philosophy, and importance of the Program remains unchanged. As we have said many times, most

Everything Else [Show unpinned \(0\)](#)

Hit Highlights

Search Hits

< remain* 2 of 2

Metadata

All Custodians Enron

Annotations

Notes

T Add note

Edit layout Save/Load...

Advanced Search Lab - Wildcards

- Close out of review window
- Hit the back button on your browser to get back to last search

Advanced Search Lab - Wildcards

- `remain?` = remains
- `remain*` = remains, remained, remainder, remainders

Advanced Search Lab - Fuzzy

- Fuzzy searches find common misspellings of words and use a ~
- An additional optional parameter of between 0 and 1 can be used to specify similarity (where closer to 1 signifies higher similarity)

Advanced Search Lab - Fuzzy

- Try this search: their~0.1

And

Contents

their~0.1

×

Uploaded

Native: Enron - Kenneth Lay Emails

×

Hide all

↓ 4%

Search settings

Open data visualizer

Search

into a consulting

e and the Board of

I want to assure you that Jeff's departure will in no way affect the relationship that Enron has with Microsoft

and more specifically MSN. I have been briefed on the MSNIA project, by my team, and they assure me that we are on track to meet your Broadband Internet Access roll-out plans in early October. I look forward to

Advanced Search Lab - Proximity

- Proximity searches use word boundaries to find a word within a certain distance of another word
- The words are put in between a single set of quotes and a tilde is used at the end to set the word boundary

Advanced Search Lab - Proximity

- Try this search: "contact visit"~10

And

Contents "contact visit" ~10

Uploaded Native: Enron - Kenneth Lay Emails

Hide all

Search settings

Open data visualizer

Search

infrastructures. The company's products are deployed by carriers in North America and Europe. Integral Access is based in Chelmsford, Massachusetts and is privately held. To **contact** Integral Access call **+1-978-256-8833**, visit us on the Web at <http://www.integralaccess.com>, or <mailto:info@integralaccess.com>.

Everything Else

[Show unpinned \(0\)](#)

Hit Highlights

Search Hits

< "contact visit" ~10

1 of 1



Advanced Search Lab - Proximity

- What does this search do?

And

Contents "(contact* visit*) (help "we are")" ~10

Uploaded Native: Enron - Kenneth Lay Emails

Hide all

Search settings

Open data visualizer

Search

Advanced Search Lab - Proximity

- "(contact* visit*) (help "we are")" ~10
- Looks for contact* OR visit* within 10 words of help OR the phrase "we are"

Advanced Search Lab - Proximity

- What does a regex do?
- What does this regex return?
 - `" / [-A-Za-z0-9._%+]+[@] [-A-Za-z0-9.]+[.][A-Za-z]{2,4} / "`
- These can be used in the "Contents" search as well

Advanced Search Lab

- Open and the two Everlaw docs on basic and advanced content searches below:

Basic



Advanced



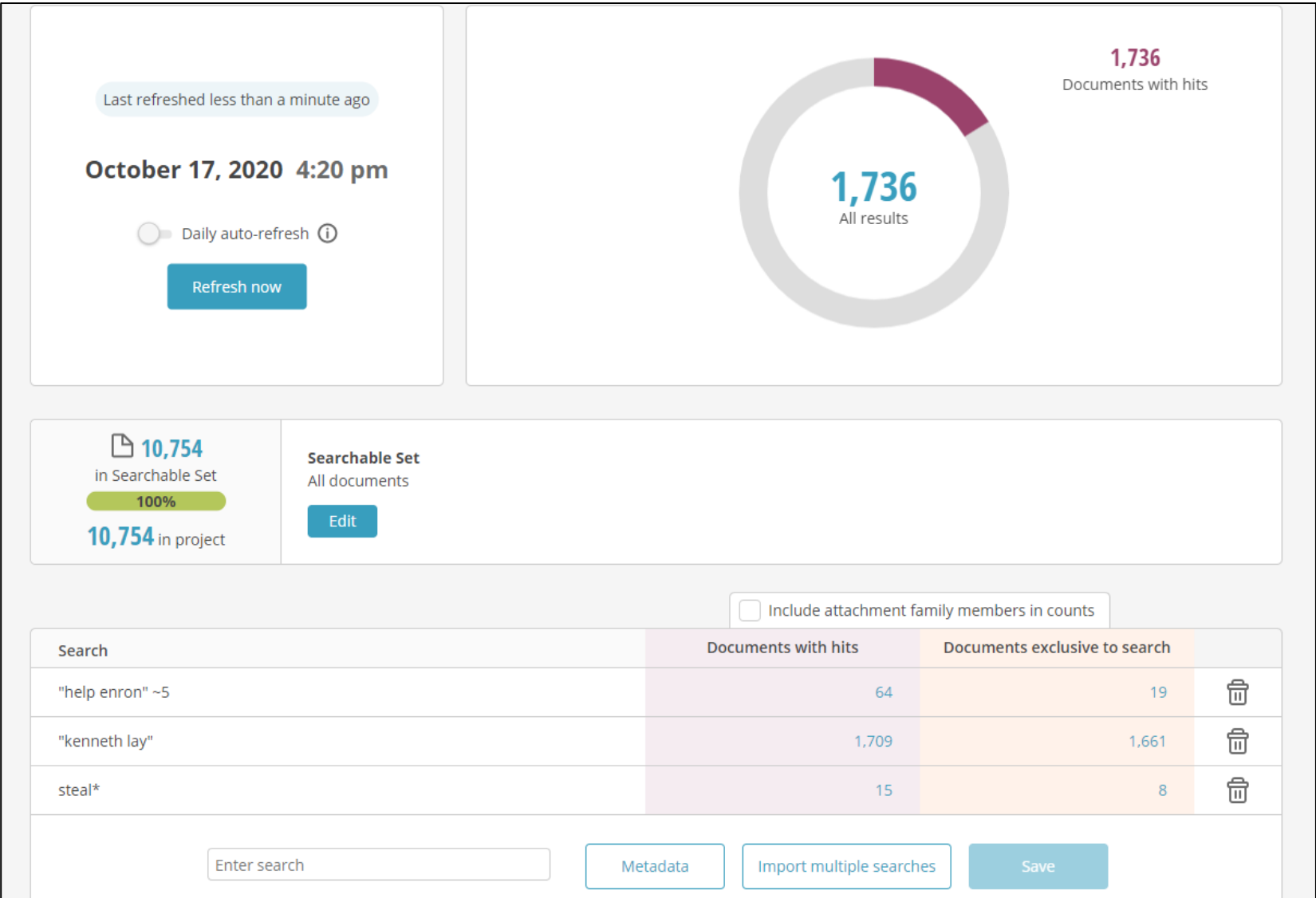
Advanced Search Lab

- Take some time to play around with the various terms on the left as well as basic and advanced project search options on the Enron data
 - Leave “Uploaded” set as Enron
 - Try fuzzy, Booleans, regex, etc.

Search Term Reports (STR)

- Useful to give the requesting side if you think their term requests may be too burdensome
- Hit the Home button in Everlaw
- Select the “+” next to “Searches” and select “New Search Term Report”
- Feel free to put whatever terms you want in the “Enter Search” box and hit enter after each one

Search Term Hit Reports (STR)



Everlaw

- You can now close Everlaw
- We'll now continue to talk about the Processing stage where the goal is to reduce the volume of ESI

DTSearch Options

- Relativity and other platforms use DTSearch for advanced searching
- In Canvas for Module Week 8, select “DTSearch Syntax Options

DTSearch Options

- Some of the operators are different than Everlaw:

Search functionality	Special characters or operators
Auto-recognition of dates, emails, credit cards	date(), mail(), creditcard()
Boolean operators	AND, OR, NOT
Built-in search words	xfirstword, xlastword
Connector words	and, or, not, to, contains
Exact phrase - double quotes	" "
Operator precedence	()
Exact phrase - no double quotes	
Fuzzy searching	%
Noise words and the alphabet file	Noise Words, Alphabet
Numerical patterns	=
Phonic searching	#
Regular expressions (Redirects to another topic.)	"###"
Stemming	~
Wildcards	?, *
W/N operator	W/N
Proximity with terms order	PRE
Words and phrases	

Sorting Relevant and Nonrelevant Data

- Review for relevant materials can begin after training has been completed
- Process is called a “first-pass review”
- Data is divided into groups and reviewers are assigned portions of the groups to search and tag

Sorting Relevant and Nonrelevant Data

- One junior doc review attorney or paralegal can review 40-50 documents per hour
 - With a “document” consisting of four to five pages
 - Junior attorneys are billed at \$150 to \$250 per hour
- Review can become expensive quickly
- Review is often the costliest part of discovery
 - Whether electronic or paper documents

Sorting Relevant and Nonrelevant Data

- Case documents are organized by using tags and folders
- Tags are software features used to categorize a document or file based on specific criteria
 - Such as privileged, responsive, nonresponsive, or further review

Attorney-Client and Work-Product Privileges

- A second-pass review is conducted to identify material that's considered to fall under attorney-client or work-product privileges. What is the difference??
- **Attorney-client privilege (ACP):** protects any communication between an attorney and a client
 - Communication is confidential and can't be disclosed without client's consent
- **Work-product privilege:** protects any work and attorney has done in representing a client
 - Includes an attorney's impressions, tactics, strategies, opinions, and thoughts

Attorney-Client and Work-Product Privileges

- Privilege review can inadvertently produce privileged materials to the opposition
 - What is a clawback agreement??
- **Clawback agreements** negotiated during the meet and confer and allows either party to demand the return of mistakenly produced privileged documents or attorney work product

Part IV

The Production Phase

The Production Phase

- After all review and quality assurance steps are complete:
 - Documents are produced to the requesting party in the agreed-on format
- A description of privileged or protected discovery should be entered in a privilege log
 - Log should be produced along with the remaining discovery
- The objective of a privilege log is to disclose information to the opposition about what has been specified as privileged and why

The Production Phase

- Privilege log should include the following for each document:
 - Type
 - Author's name
 - Names of recipients
 - Date
 - Title or description
 - Subject matter
 - The privilege claimed (ACP, work-product, etc.)
- Most review platforms can generate reports automatically that contain most of this information

Sample Privilege Log

Sample Privilege Log

	Bates No.	Document Type	Date of Document	Author/ Capacity	Recipient	Persons with access	Subject Matter	Category of Privilege
1	HHC 1340 - HHC 1345	Letter	12/22/2010	XYZ Corp.	ABC, LLP	Dan Smith	Meeting of shareholders	Trade secret
2	HHC 1420 - HHC 1421	Contract	5/6/1999	XYZ Corp.	ABC, LLP	None	Terms for agreement	Trade secret
3	HHC 1500 - HHC 1502	Letter	8/20/2004	Robert Kincaid	XYZ Corp.	None	Litigation	Attorney/Client Privilege
4	HHC 1650 - HHC 1655	Emails	3/3/2004	Sandra Jones	Robert Kincaid XYZ Corp.	Dan Smith	Deposition summaries	Attorney Work Product

Part V

Arbitration and Mediation

Arbitration and Mediation

- Civil cases can be settled before trial because of arbitration or mediation
 - Methods of settling disputes outside of court
 - Also known as **alternative dispute resolution**
- What is the difference between an arbitrator and a mediator??

Arbitration and Mediation

- Arbitrator - impartial person chosen by both parties to solve their dispute
 - Hear and evaluate evidence and make decisions
- Mediator - a person who bring parties together in some form of agreement
 - Does not evaluate evidence or make decisions

Arbitration and Mediation

- Special masters can be used in matters involving e-discovery
 - Can function as mediators or arbitrators
- As a mediator:
 - Special masters can be used to process and review discovery and turn screened material over to appropriate parties
- As an arbitrator:
 - Special masters can be appointed by the court to oversee e-discovery matters
 - Recommendations are binding

Summary

- During the meet and confer, parties should agree on preservation and production methods
- A duty to preserve obligates the responding party to evaluate which procedures and methods are best suited to meeting the preservation order
- Targeted discovery scopes use search criteria that include search expressions, proximity searches, keywords, date ranges, file types, and e-mail addresses
- Web-based repositories are a good option for law firms and corporations

Summary

- Paper discovery is part of almost every case and often adds time and costs for manual or automated subjective and objective coding
- Despite precautions attorney-client and work-product privilege material might be produced inadvertently
- Civil cases can be settled before trial by using arbitration and mediation

Text References

- Phillips, A., Godfrey, R., Steuart, C., & Brown, C. (2014). E-discovery: An Introduction to Digital Evidence. Boston, MA: Cengage Learning.

Homework

- Review and understand this slide deck on Canvas
- Feel free to play around with Everlaw on your own
 - Just don't upload extremely large datasets as we have a class 10GB limit before getting charged
- We'll go over the class project parameters in three weeks on 3/23
- Research paper instructions were posted two days ago and the paper is due in five weeks on 4/6
 - **The paper is due before class starts at 6:25pm**

Homework

- Next week (3/9) we will not have in-person class due to me being at LegalWeek in NYC
 - I will post a video lecture
- No class the next week (3/16) due to Spring Break
- The next time I will see you all in-person in class will be 3/23

Questions???

